

Vidushi Yogmaya Himalayan Ayurveda University Act, 2022

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 20

Vidushi Yogamaya Himalayan Ayurveda University Act, 2079

Certification Date

2079.05.28

Amending Acts

1. Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081 2081.12.18
2. Some Nepal Acts Amendment Act, 2082 2082.04.14

Act Number 24 of the Year 2079

An Act Made to Provide for Vidushi Yogamaya Himalayan Ayurveda University

Preamble: Whereas, it is expedient to establish and operate Vidushi Yogamaya Himalayan Ayurveda University with the investment of the Government of Nepal, to conduct study, teaching and research on Ayurveda, Yoga, Meditation and Alternative Medicine and Herbs, to establish and operate Ayurvedic medicine production and the system of Ayurvedic and Alternative Medicine, and to contribute to the prosperity of the country by producing competitive and skilled human resources;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Vidushi Yogamaya Himalayan Ayurveda University Act, 2079".

(2) This Act shall commence on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the University Council selected pursuant to Sub-section (10) of Section 7.

(b) "Research Centre" means the Research Centre pursuant to Section 24. Inserted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(b1)

"Vice-Chancellor" means the Vice-Chancellor pursuant to Section 27.

(c) "College" means a constituent college or a community constituent college of the University.

(d) "Executive Council" means the Executive Council pursuant to Section 13.

Deleted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(e) (f) "Central Department" means the Department pursuant to Sub-section (1) of Section 38. (g) "Dean" means the head of a School. (h) "Prescribed" or "as prescribed" means prescribed or as prescribed in the Rules made under this Act. (i) "Director" means the Director pursuant to Sub-section (2)

or (3) of Section 38. (j) "Officer" means an Officer pursuant to Section 6. (k) "Academic Council" means the Academic Council pursuant to Section 15. (l) "Ministry" means the Ministry of the Government of Nepal dealing with education matters. (m) "Faculty Council" means the Faculty Council pursuant to Section 18. (n) "University" means the Vidushi Yogamaya Himalayan Ayurveda University established pursuant to Section 3. (o) "University Council" means the University Council pursuant to Section 7. (p) "Teacher" means a Professor, Associate Professor, Reader, and Assistant Professor who provides education or conducts or causes research in the University, and the word also denotes Instructors of various levels of the University. (q) "Teaching Hospital" means the Teaching Hospital established pursuant to Section 23. (r) "School" means a departmental faculty or institute of study of the University established pursuant to Section 17. Chapter-2 Establishment of the University 3. Establishment of the University: (1) The Vidushi Yogamaya Himalayan Ayurveda University is established as a centre of academic excellence to conduct study, teaching and research on subjects related to Ayurveda, Yoga, Meditation and Alternative Medicine, exploratory study and research of herbs and production of Ayurvedic medicines and development of Ayurvedic and Alternative Medicine systems. (2) The University, as a central university, shall be located within the Arun Valley of Koshi Province. Explanation: For the purpose of this Section and Section 46, "Arun Valley" means the local levels of the districts mentioned in Schedule-1. 4. University to be an Autonomous and Corporate Body: (1) The University shall be an autonomous corporate body with perpetual succession and shall have a legal personality. (2) The University, as a legal person, shall exercise rights, perform duties, and discharge liabilities in accordance with the prevailing law. Chapter-3 Organization of the University and Officers 5.

6. Officers of the University: The University shall have the following officers:

- (a) Chairperson,
- (b) Vice-Chancellor,
- (c) Registrar,
- (d) Dean,
- (e) Director,
- (f) Controller of Examinations, and
- (g) Principal. Chapter-4

Constitution and Functions, Duties and Powers of the University Council

7. University Council: (1) There shall be a University Council as the apex body of the University.

(2) The University Council shall consist of the Chairperson and the following members:

- (a) Vice-Chancellor - Member

Inserted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(a1) Member of the National Planning Commission looking after education - Member

- (b) Secretary, or Joint Secretary designated by him/her, Ministry - Member

Inserted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(b1) Secretary, Ministry of the Government of Nepal dealing with health matters - Member

- (c) Dean - Member

- (d) One person from among the professors of the University - Member

(e) Secretary, Ministry dealing with education, Koshi Province - Member

(f) Director General, Department of Plant Resources - Member

(g) Director General, Department of Ayurveda - Member

(h) Four persons from among experts in the field of Ayurveda - Member

(i) Four persons from among experts in the fields of Yoga, Meditation, Alternative Medicine and Herbs, including experts in the field of herbs and persons with knowledge of traditional treatment, ensuring departmental representation - Member

(j) Two persons, including at least one woman, from among experts in the fields of Science and Technology, Management, Law or Medicine - Member

Inserted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(j1) Three persons, including at least one woman, nominated by the University Council from among persons who have contributed to the academic field or experts who have gained national or international fame in the discipline of Ayurvedic medicine - Member

Inserted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(j2) Four persons, including at least two women, nominated, for the first time after the commencement of this clause, by the Chairperson, and thereafter by the University Council, from among persons who have contributed to the academic field or experts who have gained national or international fame in the discipline of Ayurvedic medicine - Member

(k) Three persons, including at least one woman, nominated by the Provincial Government of Koshi Province - Member

(l) Three persons, one each nominated by Khadbari Municipality, Mahalaxmi Municipality and Sadananda Municipality - Member

(m) Four persons nominated by the respective local level, in the order of the local levels as mentioned in Schedule-2 of Dhankuta, Bhojpur and Sankhuwasabha districts, from the concerned local level - Member

(n) Three persons, including at least one woman, from among entrepreneurs or businessmen related to Ayurveda or herbs - Member

(o) Registrar - Member-Secretary

(3) The nomination of members pursuant to clauses (h), (i), (j) and (n) of Sub-section (2) shall be made by the University Council.

Provided that, for the first time after the commencement of this Act, the Ministry shall nominate them.

(4) While nominating members pursuant to Sub-section (3), representation of all provinces shall also be considered.

(5) The term of office of nominated members, other than the member nominated pursuant to clause (m) of Sub-section (2), shall be four years, and they may be re-nominated.

(6) The term of office of members pursuant to clause (m) of Sub-section (2) shall be one year. Provided that if such a member is selected as Chairperson, his/her term of office shall be four years, and while calculating

his/her term, the period of membership shall also be added and calculated.

(7) The qualification of nominated members pursuant to Sub-section (2) shall be as follows:

(a) having completed thirty-five years of age,

Amended by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.(b) in the case of members pursuant to clauses (h), (i), (j), (j1), (j2) and (n) of Sub-section (2), having obtained at least a master's degree from a recognized university,

(c) not having been punished by a court for corruption, rape, human trafficking or transportation, narcotic drug sale or distribution or transportation, money laundering, passport misuse, kidnapping, or other criminal offenses involving moral turpitude,

(d) not being disqualified for appointment or nomination to a public office according to the prevailing law,

(e) a person nominated from a provincial government must be of that province, and a person nominated from a local level must be of that local level, and

(f) having a high moral character.

(8) If the office of any member nominated pursuant to Sub-section (2) falls vacant, another person shall be nominated to the vacant office through the same process by which such member was nominated.

(9) The nomination process under this Section shall be initiated at least six months before the expiry of the term of office of a member nominated pursuant to Sub-section (2).

(10) The members of the University Council shall select a Chairperson from among the members nominated pursuant to clauses (h), (i), (j), (j1), (j2), (k), (l), (m) and (n) of Amended by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.Sub-section (2). Provided that a foreign citizen shall not be selectable as Chairperson of the University Council.

(11) Deleted by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081

(12) If any member of the University Council remains absent from three consecutive meetings of the University Council without a reasonable cause or without prior information to the Chairperson, such member shall be deemed to have vacated his/her office. 7A.

Nominated Members of University Council to Vacate Office: (1) A nominated member of the University Council shall vacate office in the following circumstances: (a) if he/she no longer possesses the qualification pursuant to Sub-section (7) of Section 7, (b) if he/she resigns from office, (c) if he/she dies. (2) Notwithstanding anything contained in Sub-section (1), if the performance of any member is not satisfactory, the University Council may remove such person from office. Provided that before such removal, he/she shall be given a reasonable opportunity to present a defense. 8. Recommendation Committee: (1) For the purpose of nominating members pursuant to clauses (h), (i), (j) and (n) of Sub-section (2) of Section 7 for the first time after the commencement of this Act, the Ministry shall constitute a Recommendation Committee as follows: (a) One person from among former Registrars or former officers of equivalent rank of universities established under the prevailing law - Coordinator (b) Two persons, including at least one woman, from among persons who have made significant contributions in the field of Ayurveda, Yoga, Meditation or Alternative Medicine - Member (2) The procedure of meetings of the Recommendation Committee and the process to be adopted

while recommending names for nomination shall be as determined by the Committee itself. (3) The Recommendation Committee shall recommend the name of the person to be nominated to the Ministry within thirty days from the date it commences work. 9. Meeting of the University Council: (1) The meeting of the University Council shall be held Amended by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081.at least once a year. (2) The meeting of the University Council shall be held on the date, time and place fixed by the Chairperson. (3) The Member-Secretary of the University Council shall give notice to all members, including the agenda of subjects to be discussed in the meeting, at least fifteen days before the meeting of the University Council. (4) In the University Council, if a majority of the members currently holding office are present, it shall be deemed to constitute a quorum for the meeting. (5) If the quorum is not met in the meeting pursuant to Sub-section (4), a second meeting shall be called allowing a period of seven days. (6) If the quorum is not met in the meeting called pursuant to Sub-section (5), a third meeting shall be called allowing a further period of three days.

In the meeting so called, whatever number of members are present, it shall be deemed to constitute a quorum.

(7) On the recommendation of the Registrar, two students, including one female student studying in the University, may be invited to the meeting of the Council.

(8) The Chairperson shall preside over the meeting of the University Council. In the absence of the Chairperson, the senior among the members who are selectable as Chairperson pursuant to Sub-section (10) of Section 7 shall preside over the meeting.

(9) The opinion of the majority shall prevail in a meeting of the University Council, and in case of a tie, the person presiding over the meeting shall give a casting vote.

(10) The decision of the meeting of the University Council shall be certified by the person presiding over the meeting and kept by the Member-Secretary of the said Council, and a certified copy shall be provided to all members.

(11) Members may participate in a meeting of the University Council by using communication technology with the approval of the Chairperson. Such participation shall be deemed to be presence in the meeting.

(12) Other procedures relating to the meeting of the University Council shall be as determined by the said Council. 10. Special Meeting of the University Council: (1) One-fourth of the members of the University Council may request to call a special meeting of the University Council by stating the grounds and reasons.

(2) If a request is made to call a special meeting pursuant to Sub-section (1), the Chairperson shall call the meeting within fifteen days, and such meeting shall be limited to the subject for whose discussion it was called.

(3) If the Chairperson does not call a meeting pursuant to Sub-section (2), or if a petition is submitted pursuant to Sub-section (1) of Section 12, the Vice-Chancellor shall call the meeting, and the senior member pursuant to Sub-section (8) of Section 9 shall preside over such meeting.

(4) Other provisions relating to the conduct and decision-making process of special meetings shall be as per Section 9. 11.

Functions, Duties and Powers of the University Council: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the University Council shall be as

follows: (a) to determine academic, educational, administrative, business and other necessary policies and standards of the University, (b) to approve short-term and long-term plans and strategies to develop the University as a specialized university in line with its objectives, (c) to approve the annual budget and program of the University, (d) to approve the rules necessary for the University, (e) to manage or cause management of resources required for the University, (f) to determine and confer degrees to be awarded by the University, (g) to determine service conditions, salary and facilities of researchers, employees and teachers, (h) to grant approval for the establishment of Schools, Colleges, Research Centres, Production Centres, and the operation of Teaching Hospitals and the conduct of new programs necessary for operating the University's academic programs, (i) to protect and enhance the academic values and standards of the University, and (j) to make necessary arrangements for the smooth functioning of the University. 12. Removal from Office: (1) One-third of the members currently holding office in the Council may submit a written petition to the University Council, with evidence, stating that the Chairperson has failed to fulfill his/her official responsibilities, has not conducted himself/herself in accordance with the office, or has done any act contrary to the interest of the University. (2) Upon receipt of a petition pursuant to Sub-section (1), the University Council shall, within twenty-one days, constitute a three-member investigation committee from among the members of the said Council to investigate such petition. (3) The investigation committee pursuant to Sub-section (2) may also take the assistance of relevant experts during the investigation. (4) If, upon investigation by the investigation committee pursuant to Sub-section (2), it appears that the Chairperson has failed to fulfill his/her official responsibilities, has not conducted himself/herself in accordance with the office, or has done any act contrary to the interest of the University, it shall recommend to the University Council for removal from office. Such recommendation shall be made within fifteen days from the date of initiating the investigation. (5) Within sixty days from the date of receiving the recommendation pursuant to Sub-section (4), a majority of the members currently holding office in the University Council shall decide on the removal of the Chairperson.

Provided that before making a decision on removal, the University Council shall give him/her a reasonable opportunity to present a defense against the allegation leveled against him/her. (6) From the date of recommendation for removal pursuant to Sub-section (4) until the final decision thereon, the Chairperson shall be automatically suspended from his/her office. Chapter-5 Constitution and Functions, Duties and Powers of the Executive Council 13. Executive Council: (1) There shall be an Executive Council to function as the executive body of the University. (2) The Executive Council shall be constituted as follows: (a) Vice-Chancellor - Coordinator (b) Dean - Member (c) Two persons from among Directors of Central Departments and Teaching Hospitals - Member (d) One person from among Principals of Colleges - Member (e) One person from among teachers - Member (f) Registrar - Member-Secretary (3) The nomination of members pursuant to clauses (c), (d) and (e) of Sub-section (2) shall be made by the Chairperson on the recommendation of the Vice-Chancellor, and the term of office of nominated members shall be four years. (4) If the office of a nominated member falls vacant for any reason, another person shall be nominated pursuant to Sub-section (2). (5) The procedure of meetings of the Executive Council shall be as determined by the said Council. 14.

Functions, Duties and Powers of the Executive Council: In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Executive Council shall be as follows: (a) to implement or cause implementation of the decisions and directives of the University Council, (b) to prepare and submit the annual budget and program, progress report, audit report and other proposals of the University to the University Council for approval, (c) to operate, oversee and protect the fund and movable and immovable property of the University, (d) to submit proposals to the University Council for the establishment of Schools, Colleges, Research Centres, Production Centres and the operation of Teaching

Hospitals and the conduct of new programs necessary for operating the University's academic and academic programs, (e) to appoint and promote teachers and employees necessary for the University, (f) to determine student fees, (g) to constitute various committees, sub-committees or task forces as required, (h) to ensure or cause assurance of the quality of educational and medical services provided by the University, (i) to coordinate as required among the provincial government, local level, cooperatives and private sector for the systematic operation of the University, and (j) to perform or cause performance of other functions assigned to the Executive Council. Chapter-6 Constitution and Functions, Duties and Powers of the Academic Council 15. Academic Council: (1) There shall be an Academic Council to function as the body for systematizing the academic, scholarly and research activities of the University. (2) The Academic Council shall be constituted as follows: (a) Vice-Chancellor - Coordinator (b) Registrar - Member (c) One person from among Directors - Member (d) Two persons, including at least one woman, from among teachers - Member (e) Two persons, including at least one woman, from among subject experts, ensuring representation of different disciplines in the fields of Ayurveda, Yoga, Meditation and Alternative Medicine - Member (f) One person designated by the Vice-Chancellor from among Directors - Member (g) One person designated by the Vice-Chancellor from among Deans - Member-Secretary (3) The nomination of members pursuant to clauses (c), (d) and (e) of Sub-section (2) shall be made by the Vice-Chancellor, and the term of office of nominated members shall be four years. (4) The procedure of meetings of the Academic Council shall be as determined by the said Council. 16.

Functions, Duties and Powers of the Academic Council: The functions, duties and powers of the Academic Council shall be as follows: (a) to determine and approve the curriculum of subjects to be studied, researched and trained at the University, (b) to grant approval for programs related to the University's academic, research and innovation, (c) to determine the qualification and basis for student admission, method of changing discipline, learning assessment method and type of examination, (d) to perform necessary acts to maintain the educational quality of the University, (e) to recommend to the University Council for various degrees to be awarded by the University, (f) to advise the Executive Council on academic and research matters, and (g) to perform functions assigned by the University Council. Chapter-7 Schools, Faculty Council, Subject Committee, Colleges, Teaching Hospital, Research Centre and Production Centre 17. Schools: (1) The University shall have the required number of Schools for study, teaching and research. (2) The Schools pursuant to Sub-section (1), subject to the objectives and policies of the University, shall be functionally autonomous in academic, financial and administrative matters. (3) Based on student numbers, adequacy of physical resources and facilities, and workload, one or more programs may be operated under a single School. (4) Other provisions relating to the operation of Schools shall be as prescribed. 18. Faculty Council: (1) For each School, there shall be a Faculty Council, under the chairpersonship of the Dean, to function as the academic body of the School. (2) The Faculty Council shall consist of a maximum of eleven members. (3) The members of the Faculty Council shall be nominated by the Dean. (4) The term of office of members pursuant to Sub-section (3) shall be two years, and they may be re-nominated. (5) The procedure of meetings of the Faculty Council shall be as determined by the Faculty Council itself. 19.

Functions, Duties and Powers of the Faculty Council: The functions, duties and powers of the Faculty Council shall be as follows: (a) to specify the basis and process for student selection and the number of seats based on the qualification determined by the Academic Council for student admission, (b) to recommend to the Academic Council for creating new honorary degrees, adding, amending, altering or abolishing them, (c) taking the opinion of Subject Committees, to recommend to the Academic Council for determining, approving and amending the curriculum of subjects related to the School, (d) to recommend to the Examination Management Office for specifying the type of examination related to the School's academic program, making

changes, examining conditions and other arrangements, (e) to determine and evaluate the infrastructure and facilities required for academic programs to be operated or being operated in Colleges, (f) to give necessary directions or guidance to Subject Committees, and (g) other subjects that the Dean deems necessary to be decided by the Faculty Council. 20. Subject Committee: (1) There shall be a Subject Committee in each Teaching Department to assist in the work of the Faculty Council. Explanation: For the purpose of this Section and Section 21, "Teaching Department" means the central body conducting academic programs on a disciplinary basis. (2) The Subject Committee shall be constituted as follows: (a) Head, Teaching Department - Coordinator (b) Two persons from among teachers - Member (c) Two persons from among teachers of related subjects from other universities - Member (3) The members pursuant to clauses (b) and (c) of Sub-section (2) shall be nominated by the Dean on the recommendation of the Head of the concerned Teaching Department. (4) The term of office of members pursuant to Sub-section (3) shall be two years, and they may be re-nominated. (5) The procedure of meetings of the Subject Committee shall be as determined by the Subject Committee itself. 21. Functions, Duties and Powers of the Subject Committee: The functions, duties and powers of the Subject Committee shall be as follows: (a) to recommend to the Faculty Council for determining, approving and amending the curriculum of subjects related to the Teaching Department, (b) to prepare and recommend the format of course content and grid of question papers to the Faculty Council, (c) based on the qualification determined for student admission, to recommend to the Faculty Council the minimum qualification, basis and process for selection, and number of seats for student entry, and (d) to develop and recommend to the Faculty Council the evaluation system and tools for academic and research-related programs conducted in Colleges. 22.

College: (1) The University may establish and operate constituent Colleges. (2) While establishing a College pursuant to Sub-section (1), it may be established so that there is one College in each province based on necessity. (3) The University may, subject to Sub-section (2), establish and operate a Constituent College in collaboration or partnership with a province or local level or cooperative organization. (4) In the Colleges established and operated pursuant to Sub-sections (1), (2) and (3), academic programs of different disciplines may be conducted. (5) Other provisions relating to the operation of Colleges shall be as prescribed. 23. Operation of Teaching Hospital: (1) A College conducting an Ayurveda or Alternative Medicine program shall operate a Teaching Hospital as an integral part thereof. (2) While operating a Teaching Hospital pursuant to Sub-section (1), it shall be done according to the standards determined by the Medical Education Commission constituted under the prevailing law. (3) The procedure relating to the operation of the Teaching Hospital shall be as prescribed. 24. Establishment and Operation of Research Centre: (1) The University shall establish and operate Research Centres as required to conduct research and innovation related activities in the fields of Ayurveda, Yoga, Meditation and Alternative Medicine. (2) The University may conduct research and innovation related activities in coordination and collaboration with government, cooperative, private sector and local community. (3) The benefits obtained from research and innovation related activities pursuant to Sub-section (2) shall be distributed based on knowledge, skill and investment utilized. (4) The procedure relating to the operation of the Research Centre shall be as prescribed. 25. Establishment and Operation of Production Centre: (1) The University shall establish and operate Production Centres as required for the collection, processing and production of plants, herbs or other biological resources for the purpose of producing and marketing Ayurvedic medicines. (2) The Production Centre pursuant to Sub-section (1) may collaborate with government, cooperative, private sector and local community for the utilization and promotion of traditionally prevalent knowledge and skills, establishment and operation of herb gardens, herb processing and medicine production, and entrepreneurship development. (3) The University may, subject to the prevailing law, keep wildlife for the purpose of Ayurvedic medicine

production. (4) The Production Centre shall perform activities including quality testing and control, branding, and determination of selling price of goods produced by it for the purpose of selling such goods. (5) Other provisions relating to the operation and marketing of the Production Centre shall be as prescribed. Chapter-8 Officers, Teachers and Employees of the University 26.

Chairperson: (1) The Chairperson of the University Council shall be selected pursuant to Sub-section (10) of Section 7. (2) The Chairperson shall be the head of the University and the Chairperson of the University Council. (3) The Chairperson shall preside over the convocation ceremony of the University. (4) The Chairperson may inspect the University and give necessary directions as required. (5) The term of office of the Chairperson shall be four years, and while calculating his/her term, the period of membership in the University Council shall also be added and calculated. (6) The service facilities of the Chairperson shall be as prescribed. 27. Vice-Chancellor: (1) There shall be a Vice-Chancellor in the University to perform functions as the executive head of the University. (2) Amended by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081. The Chairperson shall appoint the Vice-Chancellor after completing the process pursuant to Section 29. (3) The term of office of the Vice-Chancellor shall be four years, and he/she may be re-appointed for one more term. (4) The remuneration, facilities and other terms of service of the Vice-Chancellor shall be as prescribed. 28. Qualification of Vice-Chancellor: A person possessing the following qualification shall be qualified to be appointed as Vice-Chancellor: (a) having obtained at least a master's degree from a recognized university, (b) having at least ten years of experience in the academic field, (c) having demonstrated excellent managerial skills and acumen in the field of educational or academic advancement, (d) having completed thirty-five years of age, and (e) having a high moral character. 29.

Recommendation Committee: (1) The University Council shall constitute a Recommendation Committee, including at least one woman, as follows for the appointment of the Vice-Chancellor: (a) A member of the University Council designated by the University Council - Coordinator (b) One person nominated by the University Council from among persons in the field of Ayurveda, Yoga, Meditation or Alternative Medicine - Member (c) One person nominated by the University Council from among professors of the University or persons related to education, management or academic administration - Member (2) The Recommendation Committee pursuant to Sub-section (1) shall publish a public notice for the purpose of inviting applications from domestic or foreign persons who meet the qualification for the post of Vice-Chancellor. (3) From among the candidates who submitted applications according to the notice published pursuant to Sub-section (2), a shortlist of three to seven eligible candidates shall be prepared and such candidates shall be invited for interview and presentation. (4) Based on the interview and presentation of candidates pursuant to Sub-section (3), the Recommendation Committee shall recommend the name of the most suitable candidate to the University Council for appointment to the post of Vice-Chancellor. (5) The Chairperson shall appoint the person recommended pursuant to Sub-section (4) to the post of Vice-Chancellor within fifteen days. (6) Other procedures relating to the appointment of the Vice-Chancellor shall be as prescribed. 30.

Functions, Duties and Powers of the Vice-Chancellor: (1) In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Vice-Chancellor shall be as follows: (a) to implement or cause implementation of the decisions and directives of the University Council, (b) to generally control and supervise all work and activities of the University, (c) to give directions within his/her jurisdiction on matters related to the University's work and activities, (d) to coordinate, monitor and evaluate or cause evaluation of programs conducted by the University and submit reports thereof to the Executive Council, (e) to cause submission of proposals that need to be submitted to the University Council, (f) to

determine or cause determination of short-term and long-term programs for the development of the University, (g) to arrange necessary resources for the University, (h) to maintain or cause maintenance of financial discipline, economy and transparency, (i) to manage, secure and protect or cause management, security and protection of the University's property, (j) to perform other functions except those stated to be performed by any body or officer under this Act or the Rules made under this Act, (k) to analyze and address and manage complaints related to the University, and (l) to perform other functions assigned by the University Council. (2) The Vice-Chancellor shall inform the University Council of any policy decision or related work done pursuant to clause (j) of Sub-section (1). 31. Registrar: (1) The Registrar shall be a full-time officer of the University. (2) Amended by the Good Governance Promotion and Public Service Delivery related Some Nepal Acts Amendment Act, 2081. The Registrar shall be appointed by the Chairperson on the recommendation of the Recommendation Committee pursuant to Sub-section (1) of Section 29. (3) The term of office of the Registrar shall be four years. (4) The remuneration, facilities and other terms of service of the Registrar shall be as prescribed. 32. Qualification of Registrar: A person possessing the following qualification shall be qualified to be appointed as Registrar: (a) having obtained at least a master's degree from a recognized university, (b) having at least eight years of experience in the field of academic or educational administration, (c) having demonstrated excellent managerial skills and acumen in the field of educational or academic advancement, (d) having completed thirty-five years of age, and (e) having a high moral character. 33.

Functions, Duties and Powers of the Registrar: (1) In addition to the functions, duties and powers mentioned elsewhere in this Act, the functions, duties and powers of the Registrar shall be as follows: (a) to perform tasks related to teacher and employee administration of the University, (b) to conduct or cause operation, accounting and auditing of the University's fund, (c) to formulate and implement or cause implementation of policies and plans related to internal administration, (d) to prepare and implement or cause implementation of policies and plans related to the financial administration of the University, (e) to perform necessary tasks regarding the management, protection and operation of the University's property, (f) to prepare or cause preparation of the estimated income and expenditure of the University, (g) to inspect all bodies under the University, including Schools, Colleges, Research Centres, Production Centres, and to correct any deficiencies found in administration and management, and to take departmental action against employees, (h) to oversee, control and manage examinations conducted by the University, (i) to perform functions as per the direction of the Executive Council and the Vice-Chancellor. (2) While performing functions pursuant to Sub-section (1), the Registrar shall act under the general direction and control of the Vice-Chancellor. 34. Removal from Office: (1) One-third of the members currently holding office in the University Council may submit a written petition to the Chairperson, with evidence, stating that the Vice-Chancellor has failed to fulfill his/her official responsibilities, has not conducted himself/herself in accordance with the office, or has done any act contrary to the interest of the University. (2) The Vice-Chancellor may recommend to the University Council for the removal of the Registrar from office stating that he/she has done any of the acts mentioned in Sub-section (1). (3) Upon (4) Certificates, degrees Amended by the Act to Amend Some Nepal Acts, 2082. and other provisions relating to recognition shall be as prescribed. 50. Eligibility Required for Student Enrollment: The eligibility of students and researchers required for enrollment in the University shall be as prescribed. 51. Operation of Pre-qualification Educational Programs: For the enhancement of student access to bachelor's or higher level educational programs operated by the University, the University may, on its own or in collaboration or partnership with local levels or other associations or institutions, after obtaining approval from the concerned body, operate pre-qualification educational programs. 52.

Free Higher Education and Scholarships: (1) Higher education shall be free for Dalit, marginalized, persons

with disabilities, and economically disadvantaged students enrolled in the University or its constituent colleges under its jurisdiction. (2) The facility pursuant to sub-section (1) may be availed of by a student only once at each level. (3) Notwithstanding anything written in the prevailing law, seats shall be reserved for Dalit students for enrollment in technical and vocational higher education, along with a free scholarship as prescribed. (4) The University shall make provision for higher education for the sons and daughters of martyrs, disappeared persons, Madhesis, indigenous nationalities, women, and persons with disabilities in accordance with the provision in the prevailing law. (5) A student who has studied in grades nine and ten in a community school shall receive a scholarship in higher education in accordance with the prevailing law. 53. Not to Grant Affiliation or Approval: Since the University has its own constituent colleges, it shall not grant affiliation or approval to other educational institutions. 54. Proceedings Not to be Invalidated: No proceeding of the University done involving a member or office-bearer of the University Council shall be invalidated merely by reason of a vacancy in the position of a member or office-bearer of the University Council or a defect in the appointment or nomination of a member or office-bearer of the University Council. 55. Annual Report: (1) The University Council shall, within three months from the date of expiry of each fiscal year, submit an annual report of the activities carried out by the University throughout the year to the University Grants Commission. (2) The subjects to be included in the report pursuant to sub-section (1) shall be as prescribed. (3) Upon receipt of the report pursuant to sub-section (1), the University Grants Commission shall submit the University's report, along with an analytical statement based on comparison with the University's targets in accordance with the agreement made between the University and the Grants Commission during grant determination, and the University's achievements, to the Ministry. 56. Prior Approval Required: The University shall, before approving posts or adding remuneration or service facilities for any office-bearer, teacher, researcher, or employee that creates a financial liability on the Government of Nepal, obtain approval from the Government of Nepal, Ministry of Finance, through the Ministry. 57. Formation of Committee: (1) The University may form committees as required. (2) The functions, duties, and powers of a committee shall be as specified at the time of forming such committee. 58.

Rights Relating to Intellectual Property: (1) The rights relating to intellectual property obtained by the University on the basis of research, invention, production, or any other basis shall be secured with the University in accordance with the prevailing law. (2) A researcher or other person involved in the acquisition of intellectual property, obtained on any basis such as research, invention, production, with the involvement of the University pursuant to sub-section (1), may be provided with identification or reward or a certain portion of royalty as prescribed. 59. Appointment or Nomination of Foreign Citizens or Non-Resident Nepali Citizens: A foreign citizen or non-resident Nepali citizen who can make significant contribution to the University may be appointed or nominated as a member of the University Council. 60. Not to Act in Case of Conflict of Interest: If any office-bearer nominated or appointed under this Act is seen to have a conflict of interest with the interest or concern of the University, he/she shall not be entitled to participate in such proceedings or decision-making process. 61. External Evaluation to be Conducted: (1) The University Council may, every three years, cause an external evaluation to be conducted on subjects including the activities carried out by the University, the use of means and resources, and the achievements obtained, as prescribed. (2) The report of the external evaluation pursuant to sub-section (1) shall be submitted to the University Council. (3) The University Council shall submit the evaluation report pursuant to sub-section (2) to the Government of Nepal through the Ministry within six months from the date of expiry of the three-year period. (4) After the report pursuant to sub-section (3) is submitted to the Government of Nepal, the University shall make such report public. 62.

Inspection and Inquiry and Issuance of Directions: (1) If the work or progress of the University does not

appear satisfactory on the basis of the annual report pursuant to Section 55 and the external evaluation report pursuant to Section 61, the Ministry may form an inspection and inquiry committee as follows to inspect and inquire into the activities of the University, or cause such inspection and inquiry to be done:- (a) Chairperson of the University Grants Commission or a member designated by him/her - Chairperson (b) One person from among those who have made significant contribution in the fields of Ayurveda, Yoga, Meditation, and Alternative Medicine - Member (c) One person from among those who have made significant contribution in the field of education - Member (2) If the committee pursuant to sub-section (1), while conducting inspection and inquiry, submits a report with suggestions stating that the work of the University does not appear satisfactory, the Ministry may give necessary directions to the University to implement the suggestions mentioned in the report. (3) It shall be the duty of the University to implement the directions pursuant to sub-section (2). 63. Delegation of Powers: (1) The University Council may, as necessary, delegate some of the powers conferred on it under this Act or the rules framed under this Act to the Academic Council, the Executive Council, or the Vice-Chancellor. (2) The Academic Council may, as necessary, delegate some of the powers conferred on it under this Act or the rules framed under this Act to the prescribed body or committee. (3) The Executive Council may, as necessary, delegate some of the powers conferred on it under this Act or the rules framed under this Act to any office-bearer or committee of the University. (4) Any office-bearer of the University may, as necessary, delegate some of the powers conferred on him/her under this Act or the rules framed under this Act to any office-bearer subordinate to him/her. 64. Contact with Government of Nepal: When contacting the Government of Nepal, the University shall do so through the Ministry. 65. Measurement of Act Implementation: The Ministry shall measure the implementation of this Act within one year after the completion of five years from the commencement of this Act, and thereafter within one year after every five years, and shall submit the report thereof to the relevant committee of both houses of the Federal Parliament. 66. Consequences upon Dissolution: If the University is dissolved for any reason, the property and liabilities of the University shall devolve upon the Government of Nepal. 67.

Power to Make Rules: (1) For the implementation of this Act, the University may make rules on the following subjects:- (a) Organization and academic administration, (b) Financial management and procurement, (c) Autonomy and decentralization, and (d) Other subjects necessary for the implementation of this Act. (2) When making rules pursuant to sub-section (1), if an additional financial burden falls on the Government of Nepal, the consent of the Government of Nepal, Ministry of Finance, shall be obtained. 68. Repeal and Saving: (1) The Vidushi Yogamaya University Infrastructure Construction Development Committee (Formation) Order, 2077 is hereby repealed. (2) After the commencement of this Act, all assets and liabilities of the Vidushi Yogamaya University Infrastructure Construction Development Committee shall devolve upon the University. (3) All acts and proceedings done under the Vidushi Yogamaya University Infrastructure Construction Development Committee (Formation) Order, 2077 shall be deemed to have been done under this Act. Schedule-1 (For the purpose of sub-section (2) of Section 3 and Section 46) Arun Valley Sankhuwasabha District Bhojpur District Dhankuta District 1. Khadbari Municipality, 1. Arun Rural Municipality, 1. Chhathar Jorpati Rural Municipality, 2. Chichila Rural Municipality, 2. Pauwadungma Rural Municipality, 2. Pakhribas Municipality, and 3. Chainpur Municipality, 3. Bhojpur Municipality, 3. Mahalaxmi Municipality. 4. Dharmadevi Municipality, 4. Shadananda Municipality, 5. Panchakhapan Rural Municipality, 5. Salpa Silichho Rural Municipality, and 6. Bhotkhola Rural Municipality, 6. Hatuwagadhi Rural Municipality. 7. Makalu Rural Municipality, 8. Madi Municipality, 9. Sabhapokhari Rural Municipality, and 10. Silichho Rural Municipality. Schedule-2 (For the purpose of clause (e) of sub-section (2) of Section 7) Serial List of Local Levels 1. Arun Rural Municipality, Bhojpur, 2. Chichila Rural Municipality, Sankhuwasabha, 3. Chainpur Municipality, Sankhuwasabha, 4. Chhathar Jorpati Rural Municipality, Dhankuta, 5. Dharmadevi Municipality,

Sankhuwasabha, 6. Panchakhapan Rural Municipality, Sankhuwasabha, 7. Pakhribas Municipality, Dhankuta, 8. Pauwadungma Rural Municipality, Bhojpur, 9. Bhojpur Municipality, Bhojpur, 10. Bhotkhola Rural Municipality, Sankhuwasabha, 11. Makalu Rural Municipality, Sankhuwasabha, 12. Madi Municipality, Sankhuwasabha, 13. Sabhapokhari Rural Municipality, Sankhuwasabha, 14. Salpa Silichho Rural Municipality, Bhojpur, 15. Silichho Rural Municipality, Sankhuwasabha, and 16. Hatuwagadhi Rural Municipality, Bhojpur.